



CHAPTER xli

An Act to confer further powers on the Port of London Authority; and for other purposes.

[3rd August, 1961.]

WHEREAS by the Port of London Act, 1908, the Port of London Authority (hereinafter referred to as "the Port Authority") were established for the purpose of administering, preserving and improving the port of London and for other purposes in that Act set forth, and by that Act (inter alia) the undertaking and powers of the London and India Docks Company and other undertakings and powers were transferred to and vested in the Port Authority, other powers were conferred upon the Port Authority and other provisions were made with reference to the port of London:

And whereas by various subsequent Acts and Orders further powers were conferred on the Port Authority and the Port Authority have executed divers works for the improvement of the port of London:

And whereas it is expedient that certain of the rates which may be demanded and taken by the Port Authority should be increased and that further or new provisions, as in this Act contained, should be made with respect to certain other rates:

And whereas by an agreement dated the twenty-sixth day of March, eighteen hundred and eighty-nine, made between the Millwall Dock Company (the predecessors in title of the Port Authority and hereinafter called "the company") and the Board of Works for the Poplar District, the company agreed to allow the public to have the user of a part of Glengall Road (now known as Glengall Grove) in the borough of Poplar which crosses the Millwall Dock then vested in and owned by the company subject to a right to operate an opening bridge over the said dock:

And whereas owing, amongst other factors, to an increase in the size of ships now using the port of London it is expedient for the proper use and development of the port that the Millwall Dock should be improved and developed and for this purpose it is necessary to stop up and discontinue the public user of part of Glengall Grove:

And whereas it is expedient that other powers be conferred upon the Port Authority as in this Act contained and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short and
collective
titles.

- 1.—(1) This Act may be cited as the Port of London Act, 1961.
(2) The Port of London Acts, 1920 to 1959, and this Act, may be cited together as the Port of London Acts, 1920 to 1961.

Interpretation.

- 2.—(1) In this Act, unless the subject or context otherwise requires—

“ the Act of 1920 ” means the Port of London (Consolidation) Act, 1920;

“ the Act of 1923 ” means the Port of London (Dock Charges) Act, 1923;

“ the Act of 1932 ” means the Port of London (Various Powers) Act, 1932;

“ the Act of 1928 ”, “ the Act of 1935 ”, “ the Act of 1950 ”, “ the Act of 1952 ”, “ the Act of 1957 ” and “ the Act of 1959 ” mean the Port of London Acts of those respective years;

“ enactment ” means any Act, whether public, general or local, or any order made thereunder, or any provision in any Act or in any such order;

“ the Port Authority ” means the Port of London Authority;

“ the port fund ” means the port fund established in pursuance of the Port of London Act, 1908;

“ the port of London ” means the port within the limits described in the First Schedule to the Act of 1920, as amended by section 22 (Amending First Schedule to Act of 1920) of the Act of 1932 and section 23 (As to landward limit of the port of London) of the Act of 1950.

(2) References in this Act to any other enactment shall be construed as references to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3.—(1) Section 30 of the Harbours Docks and Piers Clauses Incorporation Act, 1847, so far as the same is applicable to the purposes of, and is not inconsistent with, the provisions of this Act, is hereby incorporated with and forms part of this Act.

*of Harbours
Docks and
Piers Clauses
Act, 1847.*

(2) In construing the enactment so incorporated the expressions—

“the rates” means the rates authorised by section 5 (Port rates on goods) of this Act ;

“the undertakers” means the Port Authority.

4. The maximum amounts of the rates and rents authorised by the provisions of the Acts specified in the first column of the First Schedule to this Act, of which rates and rents short particulars are contained in the second column of that schedule, are hereby increased by an amount equal to twenty-five per centum of the respective amounts thereof; and the Port of London Acts, 1920 to 1961, shall be read and construed accordingly.

*Increase of
certain rates.*

5.—(1) On and after the first day of April nineteen hundred and sixty-two:—

*Port rates
on goods.*

(a) The Port Authority may demand and take in respect of all goods imported from parts beyond the seas or coastwise into the port of London, or exported to parts beyond the seas or coastwise from that port, rates not exceeding by more than twenty-five per centum the rates specified in the Second Schedule to this Act, subject to the exemptions and conditions specified in that schedule and to any exemptions or rebates allowed by the Port Authority under section 13 (Port rates on goods) of the Act of 1920; and

(b) The following enactments shall be repealed:—

Act of 1920—

Section 14 (Provisions as to port rates on goods);

Section 15 (Power to levy port rates on goods);

Section 17 (Maximum rates on oversea exports);

Subsection (2) of section 18 (Maximum rates on coastwise goods);

Section 65 (Saving for rivers Medway and Swale);

Act of 1932—

Subsections (1) and (2) of section 16 (Port rates on goods);

Act of 1950—

Subsection (1) of section 7 (Increase of rates).

(2) The provisions of section 462 (Exemption of vessels in His Majesty's service from rates) of the Act of 1920 shall, so far as applicable, extend and apply to the rates authorised by this section.

Power to stop
up part of
Glengall
Grove.

6.—(1) In this section—

“ apparatus ” means—

(a) in relation to the London Electricity Board, electric cables;

(b) in relation to the Metropolitan Water Board, water mains and pipes; and

(c) in relation to the North Thames Gas Board, gas mains and pipes;

and includes any necessary works ancillary thereto;

“ the borough ” means the metropolitan borough of Poplar;

“ the Council ” means the mayor, aldermen and councillors of the borough;

“ the highway ” means that part of Glengall Grove in the borough which is coloured pink on a plan signed in triplicate by Sir William Anstruther-Gray, the chairman of the committee of the House of Commons to whom the Bill for this Act was referred, one copy of which has been deposited at the office of the Clerk of the Parliaments, House of Lords, one in the Private Bill Office of the House of Commons and one at the office of the Port Authority, Trinity Square, in the city of London;

“ footway ” means a way for persons on foot only between Mellish Street or the western end of the highway and East Ferry Road in the borough;

“ the Minister ” means the Minister of Transport;

“ telegraphic line ” and “ alteration ” have the same meanings as in the Telegraph Act, 1878;

“ undertaker ” means the London Electricity Board, the Metropolitan Water Board and the North Thames Gas Board.

(2) (a) The Port Authority may stop up and discontinue for public traffic the highway and, subject to the provisions of subsections (9) and (10) of this section, on the stopping up thereof all public and private rights of way and all other rights in, over or affecting the highway, shall be extinguished:

Provided that the highway shall not be stopped up or discontinued for public traffic until the Port Authority have constructed a footway to the reasonable satisfaction of the Council and have opened it for the use of the public.

(b) Before commencing to construct a footway, the Port Authority shall submit to the Council plans, sections and particulars of the manner of construction, for their reasonable approval.

(c) If the Council do not within twenty-eight days after the submission to them of any such plans, sections and particulars signify to the Port Authority their approval or disapproval thereof they shall be deemed to have approved thereof.

(d) The footway shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved or are deemed to be approved by the Council or, if such approval be withheld, as may be settled by the Minister.

(3) (a) The Port Authority may from time to time with the consent of the Council divert the footway constructed by them pursuant to subsection (2) of this section, or any diversion of the same, and stop up so much of the said footway or any previous diversion thereof as appears to the Port Authority requisite for effecting the new diversion. On the stopping up thereof all public rights of way and all other rights in, over or affecting the footway shall be extinguished:

Provided that the footway shall not be stopped up until the Port Authority have constructed the diversion and have opened it for the use of the public.

(b) The consent of the Council to a proposed diversion of a footway pursuant to this subsection shall not be unreasonably withheld, and, in the event of a dispute between the Port Authority and the Council as to whether consent has been unreasonably withheld, the matter shall be referred to and determined by the Minister.

(4) The Port Authority may carry any footway provided by them pursuant to this section across Millwall Dock by means of an opening bridge and may open the bridge from time to time and at any time to enable vessels to pass:

Provided that the bridge shall be closed at all times except when required to be opened for the passage of vessels or for the purpose of carrying out repairs to the bridge.

(5) After the stopping up of the highway pursuant to subsection (2) of this section, or the stopping up of a footway or of part of a footway pursuant to subsection (3) of this section, the Port Authority shall hold the site and soil of the highway or of the footway or of such part of the footway, as the case may be, for the improvement and development of the port of London and may use the site for those purposes as if the highway or footway or such part of the footway had not previously existed.

(6) The Port Authority shall maintain any footway constructed by them pursuant to this section in a fit and proper state of repair so that the footway may be used without hindrance, detriment or danger.

(7) The agreement made the twenty-sixth day of March, eighteen hundred and eighty-nine between the Millwall Dock Company and the Board of Works for the Poplar District is hereby determined.

(8) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Port Authority compensation to be determined, in case of dispute, under and in accordance with the Land Compensation Act, 1961.

(9) Where in pursuance of the provisions of subsection (2) of this section the highway is stopped up and immediately before the date on which the stopping up took place there was under, in, upon, over, along or across the highway any telegraphic line belonging to or used by the Postmaster-General, the Postmaster-General shall have the same powers in respect of that line as if such stopping up had not taken place :

Provided that if any person entitled to an interest in any land over which the highway subsisted proposes to carry out any work which involves or is likely to involve an alteration either temporarily or permanently in any such telegraphic line, paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878, shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the person proposing to carry out the work.

(10) (a) Notwithstanding the stopping up and discontinuance of the highway the undertaker shall continue to have the same powers and rights in respect of any apparatus of the undertaker remaining in the highway so stopped up or discontinued as if it had remained a highway or, if reasonably so required by the Port Authority, shall—

- (i) remove the apparatus of the undertaker and relay or replace it in such other position as the Port Authority shall reasonably determine and the undertaker shall be empowered and entitled to place and maintain the apparatus; or
- (ii) provide and lay or place other apparatus in such other position as aforesaid in lieu of such existing apparatus;

and the Port Authority shall repay to the undertaker the reasonable expenses incurred by them in connection therewith:

Provided that the undertaker shall not be required by the Port Authority to remove any apparatus until other apparatus, adequate to enable the undertaker to continue the supply of electricity, gas or water at present afforded to any person by means of the existing apparatus, has been provided as aforesaid and is in operation to the reasonable satisfaction of the undertaker.

(b) Where in consequence of the stopping up and discontinuance of the highway any apparatus of the undertaker is rendered derelict or unnecessary, the Port Authority shall pay to the undertaker the reasonable costs incurred by the undertaker in connection with the cutting off or the removal of such apparatus and if the undertaker elects not to remove that apparatus the Port Authority shall pay to the undertaker reasonable compensation therefor.

(c) Any question or difference arising between the Port Authority and the undertaker under this subsection shall be referred to and determined by an arbitrator to be agreed upon between the parties or, in default of agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

7.—(1) In this section—

“ the Act of 1960 ” means the Road Traffic Act, 1960:

Traffic offences
on dock
roads.

“ dock road ” means any road, pier, wharf, quay, bridge or other work which, or any land which, is—

(i) vested in or the property of the Port Authority;
and

(ii) situate within the customs wall or fence bounding any dock of the Port Authority; and

(iii) accessible to motor vehicles:

“ motor vehicle ” has the same meaning as in the Road Traffic Act, 1960.

(2) The Act of 1960 shall have effect as if in the provisions thereof hereinafter mentioned the expressions “ road ” and “ highway ” included a dock road and any person who commits an offence under any of those provisions as extended by this section shall be liable to be dealt with in all respects as if the offence had been committed under those provisions on a road as defined by section 257 of the Act of 1960, and all the provisions of that Act, so far as applicable (including, without prejudice to the generality of the foregoing, sections 25 and 250 thereof), shall apply accordingly.

(3) The provisions of the Act of 1960 referred to in subsection (2) of this section are—

Section 1 (Causing death by reckless or dangerous driving);

- Section 2 (Reckless, and dangerous, driving generally);
- Section 3 (Careless, and inconsiderate, driving);
- Section 4 (Speeding);
- Section 5 (Driving under age);
- Section 6 (Driving, or being in charge, when under influence of drink or drugs);
- Section 8 (Restriction on carriage of persons on motor cycles);
- Section 9 (Reckless and dangerous cycling);
- Section 10 (Careless and inconsiderate cycling);
- Section 11 (Cycling when under influence of drink or drugs);
- Section 13 (Restriction on carriage of persons on bicycles);
- Section 14 (Drivers to comply with traffic directions);
- Section 15 (Pedestrians to comply with directions to stop given by constables regulating vehicular traffic);
- Section 16 (Leaving vehicles in dangerous positions);
- Section 24 (Speed limits for vehicles of different classes or descriptions);
- Section 43 (Removal of vehicles illegally, obstructively or dangerously parked, abandoned, or broken down);
- Section 51 (Traffic signs);
- Section 52 (Powers and duties of highway authorities as to placing of traffic signs);
- Section 54 (Emergency traffic signs);
- Section 66 (Obligatory test certificates);
- Section 67 (Testing of condition of vehicles on roads);
- Section 77 (Duty to stop, and furnish particulars, in case of accident);
- Section 97 (Minimum age for driving);
- Section 98 (Drivers of motor vehicles to have driving licences);
- Section 110 (Offence of applying for or obtaining a licence, or driving, while disqualified);
- Section 201 (Users of motor vehicles to be insured or secured against third-party risks);
- Section 202 (Exceptions from requirement of third-party insurance or security);

- Section 218 (Penalisation of tampering with motor vehicles);
Section 219 (Penalisation of holding or getting on to vehicle in order to be towed or carried);
Section 223 (Power of police to stop vehicles);
Section 225 (Power of police constables to require production of driving licences);
Section 226 (Power of police constables to obtain names and addresses of drivers, and others);
Section 228 (Penalisation of failure to give name and address, and power of arrest, in case of reckless or careless driving or cycling);
Section 229 (Pedestrians to give names and addresses in certain cases);
Section 230 (Duty of driver, in case of accident involving injury to another, to produce evidence of insurance or security or to report accident);
Section 231 (Duty of owner of motor vehicle to give information for verifying compliance with requirement of compulsory insurance or security);
Section 241 (Restrictions on prosecutions for certain offences):

Provided that, if no duty is chargeable under the Vehicles (Excise) Act, 1949, in respect of a motor vehicle—

- (a) by virtue of the provisions of subsection (4) of section 7 of that Act; or
(b) by reason only that the vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said sections 66, 97, 98, 201, 225, 230 and 231 shall not apply in respect of that vehicle while it is being driven, or to any person while driving it, on a dock road.

(4) Notwithstanding that no maximum speed limit or a maximum speed limit in excess of thirty miles per hour has for the time being been fixed by or under section 24 of the Act of 1960 in relation to a motor vehicle of any class or description that section, except subsection (2) thereof, shall for the purposes of this section have effect, so far as applicable, as if a maximum speed limit of thirty miles per hour had been fixed thereby or thereunder in relation to a motor vehicle of that class or description.

(5) Regulations or orders made under sections 3, 30 or 59 of the Road Traffic Act, 1930, or under sections 43, 64 and 70 of the Act of 1960, and from time to time in force, shall extend and

apply to dock roads as they apply to roads as defined by section 121 of the Road Traffic Act, 1930, or section 257 of the Act of 1960, as the case may be, and subsection (2) of section 64 and section 239 of the Act of 1960 shall apply accordingly:

Provided that, if no duty is chargeable under the Vehicles (Excise) Act, 1949, in respect of a motor vehicle—

(a) by virtue of the provisions of subsection (4) of section 7 of that Act; or

(b) by reason only that the vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said regulations shall not apply in respect of that vehicle while it is being driven, or to any person while driving it, on a dock road.

(6) For the purposes of the Act of 1960, as extended and applied by this section, the expressions “chief officer of police” and “police station” where used in that Act shall respectively include the chief police officer of, and any police station maintained by, the Port Authority and the expression “highway authority” shall mean the Port Authority in relation to any dock road for the maintenance of which that authority are responsible.

(7) Section 21 (Driving offences on dock roads) of the Act of 1950 and section 3 (Amendment of section 21 of Act of 1950) of the Act of 1959 are hereby repealed.

Payment of
transfer values
from Port
of London
Authority
(Industrial
Division Staff)
Pension Fund.

8.—(1) In this section—

“the fund” means the Port of London Authority Pension Fund established by the Act of 1928;

“the industrial fund” means the Port of London Authority (Industrial Division Staff) Pension Fund established by a trust deed made the twenty-second day of June, nineteen hundred and fifty-nine, between the Port Authority and Westminster Bank Limited;

“member” means an officer or servant from time to time contributing to the fund or the industrial fund, as the case may be, and does not include a recipient from either fund.

(2) If a person who has ceased to be a member of the industrial fund by reason of his appointment to a position in the Port Authority which makes him eligible for membership of the fund becomes a member of the fund, the Port Authority may transfer from the industrial fund to the fund a sum equal to the accumulated contributions of that person and of the Port Authority to the industrial fund, together with compound interest thereon at the rate prescribed in the rules for the time being of the

industrial fund, to provide for that person such additional benefits from the fund as, in the opinion of the Port Authority, are equitable having regard to the sum so to be transferred.

(3) Any sum transferred to the fund in pursuance of subsection (2) of this section shall be treated for all the purposes of the fund as a contribution by the Port Authority except to the extent that it represents the contributions of the member to the industrial fund.

9.—(1) As from the relevant date the enactments described in columns (1) and (2) of the Third Schedule to this Act shall have effect subject to the amendments specified in column (4) of that schedule.

Amendment
of Act of
1920, Act
of 1950 and
Act of
1957.

(2) “The relevant date” means, in relation to Part I of the said Third Schedule, the date of the passing of this Act, and in relation to Part II of that schedule, the first day of April nineteen hundred and sixty-two.

10. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act shall be paid by the Port Authority out of the port fund.

Costs of Act.

SCHEDULES

Section 4

FIRST SCHEDULE

Provisions of Acts (1)	Short particulars of rates and rents (2)
Section 3 of the Act of 1923 as amended by section 3 of the Act of 1957	Landing and rafting rates (import).
Subsection (2) of section 3 of the Act of 1923 as amended by section 14 of the Act of 1952 and section 4 of the Act of 1957	Wharfage and portorage rates (export).
Subsection (2) of section 4 of the Act of 1923 as amended by subsection (1) of section 10 of the Act of 1950 and section 16 of the Act of 1952	Dock tonnage rates and rents.

SECOND SCHEDULE

Section 5

PORT RATES ON GOODS

PART I

RATES ON IMPORTS

Articles and goods	Foreign s. d.	Coastwise s. d.
	Per ton	Per ton
<i>Live animals; animal products</i>		
Live animals	10 0	2 6
Meat and edible meat offals	6 4	1 7
Fish, crustaceans and molluscs	1 4	0 4
Dairy produce; birds' eggs; natural honey ...	6 0	1 6
Products of animal origin, not elsewhere specified or included	1 0	0 3

2ND SCH.
—cont.

Articles and goods	Foreign s. d.	Coastwise s. d.
<i>Vegetable products</i>	Per ton	Per ton
Live trees and other plants; bulbs, roots and the like; cut flowers and ornamental foliage ...	8 0	2 0
Edible vegetables and certain roots and tubers ...	1 8	0 5
Edible fruit and nuts; peel of melons or citrus fruit	3 4	0 10
Coffee, tea, maté and spices, with the following exception	4 0	1 0
Tea	10 0	2 6
Cereals	1 0	0 3
Products of the milling industry; malt and starches; gluten; inulin	2 0	0 6
Oil seeds and oleaginous fruit; miscellaneous grains, seeds and fruit; industrial and medical plants; straw and fodder	2 0	0 6
Raw vegetable materials of a kind suitable for use in dyeing or in tanning; lacs; gums, resins and other vegetable saps and extracts	1 4	0 4
Vegetable plaiting and carving materials; vegetable products not elsewhere specified or included	1 0	0 3
<i>Animal and vegetable fats and oils and their cleavage products; prepared edible fats; animal and vegetable waxes</i>		
Animal and vegetable fats and oils and their cleavage products; prepared edible fats; animal and vegetable waxes	4 0	1 0
<i>Prepared foodstuffs; beverages, spirits and vinegar; tobacco</i>		
Preparations of meat, of fish, of crustaceans or molluscs	6 8	1 8
Sugars and sugar confectionery	1 4	0 4
Cocoa and cocoa preparations	4 0	1 0
Preparations of cereals, flour or starch; pastry-cooks' products	4 0	1 0
Preparations of vegetables, fruit or other parts of plants	4 8	1 2
Miscellaneous edible preparations	5 0	1 3
Beverages, spirits and vinegar	2 4	0 7
Residues and waste from the food industries; prepared animal fodder	0 8	0 2
Tobacco	6 0	1 6
<i>Mineral products</i>		
Salt; sulphur; earths and stone; plastering materials, lime and cement	0 4	0 1
Metallic ores, slag and ash	0 8	0 2
Mineral fuels, mineral oils and products of their distillation; bituminous substances; mineral waxes, with the following exceptions: ...	1 6	0 5
Coal; briquettes, ovoids and similar solid fuels manufactured from coal	0 4	0 2
Coke and semi-coke of coal, of lignite or of peat	0 4	0 2
Petroleum and shale oils, crude	0 10	0 3

2ND SCH.
—cont.

Articles and goods	Foreign s. d.	Coastwise s. d.
	Per ton	Per ton
<i>Products of the chemical and allied industries</i>		
Inorganic chemicals; organic and inorganic compounds of precious metals, of rare earth metals, of radio-active elements and of isotopes	1 0	0 3
Organic chemicals	6 0	1 6
Pharmaceutical products	10 0	2 6
Fertilisers	0 8	0 2
Tanning and dyeing extracts; tannins and their derivatives; dyes, colours, paints and varnishes; putty, fillers and stoppings; inks	2 0	0 6
Essential oils and resinoids; perfumery, cosmetics and toilet preparations	8 0	2 0
Soap, organic surface-active agents, washing preparations, lubricating preparations, artificial waxes, prepared waxes, polishing and scouring preparations, candles and similar articles, modelling pastes and dental waxes	3 0	0 9
Albuminoidal substances; glues	4 0	1 0
Explosives; pyrotechnic products; matches; pyrophoric alloys; certain combustible preparations	2 0	0 6
Photographic and cinematographic goods	8 0	2 0
Miscellaneous chemical products	2 0	0 6
<i>Artificial resins and plastic materials, cellulose esters and ethers and articles thereof; rubber, synthetic rubber, factice, and articles thereof</i>		
Artificial resins and plastic materials, cellulose esters and ethers; articles thereof	6 0	1 6
Rubber, synthetic rubber, factice, and articles thereof	5 8	1 5
<i>Raw hides and skins, leather, furskins and articles thereof; saddlery and harness; travel goods, handbags and the like; articles of gut (other than silk-worm gut)</i>		
Raw hides and skins (other than furskins) and leather	2 0	0 6
Articles of leather; saddlery and harness; travel goods, handbags and the like; articles of animal gut (other than silk-worm gut)	10 0	2 6
Furskins and artificial fur; manufactures thereof	6 0	1 6
<i>Wood and articles of wood; wood charcoal; cork and articles of cork; manufactures of straw, of esparto and of other plaiting materials; basketware and wickerwork</i>		
Wood and articles of wood; wood charcoal	0 8	0 2
Cork and articles of cork	2 0	0 6
Manufactures of straw, of esparto and of other plaiting materials; basketware and wickerwork	2 0	0 6

2ND SCH.
—cont.

Articles and goods	Foreign s. d.	Coastwise s. d.
	Per ton	Per ton
<i>Paper-making material; paper and paperboard and articles thereof</i>		
Paper-making material	0 4	0 1
Paper and paperboard; articles of paper pulp, of paper or of paperboard	1 4	0 4
Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans	8 0	2 0
<i>Textiles and textile articles</i>		
Silk and waste silk	10 0	2 6
Man-made fibres (continuous)	8 0	2 0
Metallised textiles	10 0	2 6
Wool and other animal hair	4 8	1 2
Flax and ramie	2 0	0 6
Cotton	2 0	0 6
Man-made fibres (discontinuous)	4 8	1 2
Other vegetable textile materials; paper yarn and woven fabric of paper yarn	3 0	0 9
Carpets, mats, matting and tapestries; pile and chenille fabrics; narrow fabrics; trimmings; tulle and other net fabrics; lace; embroidery ...	3 0	0 9
Wadding and felt; twine, cordage, ropes and cables; special fabrics; impregnated and coated fabrics; textile articles of a kind suitable for industrial use	3 0	0 9
Knitted and crocheted goods	8 0	2 0
Articles of apparel and clothing accessories of textile fabric, other than knitted or crocheted goods	8 0	2 0
Other made-up textile articles	4 0	1 0
Old clothing and other textile articles; rags ...	1 0	0 3
<i>Footwear, headgear, umbrellas, sunshades, whips, riding-crops and parts thereof; prepared feathers and articles made therewith; artificial flowers; articles of human hair; fans</i>		
Footwear, gaiters and the like; parts of such articles	10 0	2 6
Headgear and parts thereof	8 0	2 0
Umbrellas, sunshades, walking-sticks, whips, riding-crops and parts thereof	4 0	1 0
Prepared feathers and down and articles made of feathers or of down; artificial flowers; articles of human hair; fans	10 0	2 6
<i>Articles of stone, of plaster, of cement, of asbestos, of mica and of similar materials; ceramic products; glass and glassware</i>		
Articles of stone, of plaster, of cement, of asbestos, of mica and of similar materials	1 0	0 3
Ceramic products	2 0	0 6
Glass and glassware	2 0	0 6

2ND SCH.
—cont.

Articles and goods	Foreign s. d.	Coastwise s. d.
<i>Pearls, precious and semi-precious stones, precious metals, rolled precious metals, and articles thereof; imitation jewellery; coin</i>	Per ton	Per ton
Pearls, precious and semi-precious stones, precious metals, rolled precious metals, and articles thereof; imitation jewellery	8 0	2 0
Coin	8 0	2 0
<i>Base metals and articles of base metal</i>		
Iron and steel and articles thereof	2 8	0 8
Copper and articles thereof	5 0	1 3
Nickel and articles thereof	6 0	1 6
Aluminium and articles thereof	4 0	1 0
Magnesium and beryllium and articles thereof ...	9 0	2 3
Lead and articles thereof	2 0	0 6
Zinc and articles thereof	1 8	0 5
Tin and articles thereof	6 0	1 6
Other base metals employed in metallurgy and articles thereof	6 0	1 6
Tools, implements, cutlery, spoons and forks, of base metal; parts thereof	6 0	1 6
Miscellaneous articles of base metal	2 0	0 6
<i>Machinery and mechanical appliances; electrical equipment; parts thereof</i>		
Boilers, machinery and mechanical appliances; parts thereof	5 0	1 3
Electrical machinery and equipment; parts thereof	6 0	1 6
<i>Vehicles, aircraft, and parts thereof; vessels and certain associated transport equipment</i>		
Railway and tramway locomotives, rolling-stock and parts thereof; railway and tramway track fixtures and fittings; traffic signalling equipment of all kinds (not electrically powered) ...	3 0	0 9
Vehicles, other than railway or tramway rolling-stock and parts thereof	14 8	3 8
Aircraft and parts thereof; parachutes; catapults and similar aircraft launching gear; ground flying trainers	10 0	2 6
Ships, boats and floating structures	1 0	0 3
<i>Optical, photographic, cinematographic, measuring, checking, precision, medical and surgical instruments and apparatus; clocks and watches; musical instruments, sound recorders and reproducers; parts thereof</i>		
Optical, photographic, cinematographic, measuring, checking, precision, medical and surgical instruments and apparatus; parts thereof	6 0	1 6
Clocks and watches and parts thereof	4 0	1 0
Musical instruments; sound recorders and reproducers; parts and accessories of such articles	6 0	1 6

2ND SCH.
—cont.

Articles and goods	Foreign s. d.	Coastwise s. d.
	Per ton	Per ton
<i>Arms and ammunition; parts thereof</i>		
Arms and ammunition; parts thereof	8 0	2 0
<i>Miscellaneous manufactured articles</i>		
Furniture and parts thereof; bedding, mattresses, mattress supports, cushions and similar stuffed furnishings	6 0	1 6
Articles and manufactures of carving or moulding materials	6 0	1 6
Brooms, brushes, feather dusters, powder-puffs and sieves	6 0	1 6
Toys, games and sports requisites; parts thereof	9 0	2 3
Miscellaneous manufactured articles	8 0	2 0
<i>Works of art, collectors' pieces, and antiques</i>		
Works of art, collectors' pieces, and antiques ...	12 0	3 0

PART II
RATES ON EXPORTS

Articles and goods	Foreign s. d.	Coastwise s. d.
	Per ton	Per ton
Motorised cars, lorries and vans, and motor cycles; and their parts and accessories	7 4	1 10
All other commodities, with the exception of those listed below	3 0	0 9
Spent oxide	1 0	0 3
Scrap and waste metal of iron or steel ...	0 10	0 3
Sugar	0 8	0 2
Mineral oils, crude and refined; coal tar; coal tar pitch; creosote; bitumen; asphalte ...	0 6	0 2
Scrap rope and rags	0 6	0 2
Metallic ores, slag and ash	0 4	0 1
Coal and coke	0 2	0 1
Salt; sulphur; earths and stone; plaster materials; lime and cement	0 2	0 1
Waste paper and paperboard and pulp for paper-making	0 2	0 1
Iron and steel, and articles thereof, with the exception of scrap and waste metal	2 0	0 6

EXEMPTIONS

(a) Port rates shall not be charged on fish caught in the open sea and brought in a fresh condition into the port of London direct from the fishing grounds or direct from any port in the United Kingdom, where the fish has been landed for the sole purpose of sale, packing and transhipment direct to the port of London.

(b) Port rates shall not be charged on goods carried in a vessel by reason only that the vessel passes through any part of the port of

2ND SCH.
—cont.

London on a voyage between places situate on the river Medway or the river Swale and not within the port of London and any other places not within the port of London.

CONDITIONS

- 1. Any fraction of a penny in the total amount of port rates payable at one time by any one person shall be charged as a penny.
- 2. The minimum amount payable on any one bill shall be sixpence.

THIRD SCHEDULE

AMENDMENT OF ENACTMENTS

PART I—AMENDMENTS TO TAKE EFFECT AT THE DATE OF THE PASSING OF THIS ACT

Section 9

(1) Act	(2) Section or schedule	(3) Marginal note of section	(4) Amendment
The Act of 1920	19	Exemption of bunker coal	For the word “coal” in both places where it occurs there shall be substituted the word “fuel”.
	25	Payment of port rates on exported goods	After the word “goods” in the third place where it occurs there shall be inserted the words “made out in such form as may from time to time be prescribed by the Port Authority”.
	44	Claims for repayment of port rates	For the words “entry of such goods” there shall be substituted the words “arrival or departure of the ship carrying such goods (as the case may be)”.
	188	Penalty for throwing ballast &c. into dock	(a) In subsection (1) for the words “ballast earth ashes stones oil or other substance or thing” there shall be substituted the words “ballast chattel earth ashes stones oil rubbish or other article substance or thing”; (b) The words “so as in anywise to foul the water therein” shall be omitted;

3RD SCH.
—cont.

(1) Act	(2) Section or schedule	(3) Marginal note of section	(4) Amendment
The Act of 1920 —cont.			(c) After the words “damage or injury” there shall be inserted the word “thereby”; and (d) The words “by reason of any such fouling of the Docks canals or works of the Port Authority” shall be omitted.
	228	Prohibition of throw- ing ballast &c. into river or allowing offensive matter to flow into it	In paragraph (1) after the words “ballast or any” there shall be inserted the words “chattel or other article or any”.
	234	Power to inspect lands &c. for purposes of this Part of Act	The proviso shall be omitted.
	251	No erections or works in Thames or on bed or shores there- of without licence	For the word “unload- ing” there shall be substituted the word “loading”.
	252	No mooring chains to be put down with- out permission of Port Authority	(a) After the word “placed” in both places where it occurs there shall be inserted the words “or allowed to remain”; (b) After the word “writing” there shall be inserted the words “terminate such licence and”; and (c) After the words “Port Authority” in the fourth place where they occur there shall be inserted the words “and the Port Authority may recover the costs and expenses incurred by them in effecting such removal from the person whose licence has been terminated”.

3RD SCH.
—cont.

(1) Act	(2) Section or schedule	(3) Marginal note of section	(4) Amendment
The Act of 1920 —cont.	365	Certificates to be renewed annually and licences triennially	In subsection (1) for the words “one year” in each place where those words occur there shall be substituted the words “three years”.
	371	Fees for registration of craft	(a) The words “under the last preceding section” shall be omitted; (b) After each of the first five fees listed in the section there shall be added the words “per annum”.
The Act of 1950	20	As to payment and receipt of transfer values by and to the Port of London Authority Pension Fund	In subsections (1) and (2) for the words “wholly or partly approved for the purposes of section 32 of the Finance Act 1921” there shall be substituted the words “which is wholly or partly approved by the Commissioners of Inland Revenue for the purposes of section 379 of the Income Tax Act 1952 or which is approved by the said Commissioners for the purposes of this subsection”.

PART II—AMENDMENTS TO TAKE EFFECT ON THE 1ST APRIL, 1962

The Act of 1950	First Schedule		In the first column the words “Section 15 of the Act of 1920. Subsection (2) of section 16 of and the Schedule to the Act of 1932” shall be omitted.
--------------------	-------------------	--	--

3RD SCH.
—*cont.*

(1) Act	(2) Section or schedule	(3) Marginal note of section	(4) Amendment
The Act of 1950 — <i>cont.</i>			In the second column the words “ Port rates on goods ” shall be omitted. In the third column the words “ Two hundred per centum ” shall be omitted.
The Act of 1957	Second Schedule		In the first column the words “ Section 15 of the Act of 1920 as amended by sub- section (2) of section 16 of the Act of 1932 and sub- section (1) of section 7 of the Act of 1950 ” shall be omitted. In the second column the words “ Port rates on goods ” shall be omitted.

Table of Statutes referred to in this Act

Short title	Session and chapter
Harbours Docks and Piers Clauses Act, 1847	10 & 11 Vict. c. 27.
Telegraph Act, 1878 	41 & 42 Vict. c. 76.
Port of London Act, 1908 	8 Edw. 7 c. 68.
Port of London (Consolidation) Act, 1920	10 & 11 Geo. 5 c. clxxiii.
Finance Act, 1921 	11 & 12 Geo. 5 c. 32.
Port of London (Dock Charges) Act, 1923	13 & 14 Geo. 5 c. xxxiv.
Port of London Act, 1928 	18 & 19 Geo. 5 c. xlvii.
Road Traffic Act, 1930 	20 & 21 Geo. 5 c. 43.
Port of London (Various Powers) Act, 1932	22 & 23 Geo. 5 c. xxxviii.
Port of London Act, 1935 	25 & 26 Geo. 5 c. cxvi.
Vehicles (Excise) Act, 1949 	12, 13 & 14 Geo. 6 c. 89.
Port of London Act, 1950 	14 Geo. 6 c. xxiii.
Port of London Act, 1952 	15 & 16 Geo. 6 & 1 Eliz. 2 c. ix.
Income Tax Act, 1952 	15 & 16 Geo. 6 & 1 Eliz. 2 c. 10.
Port of London Act, 1957 	5 & 6 Eliz. 2 c. v.
Port of London Act, 1959 	7 & 8 Eliz. 2 c. xxviii.
Road Traffic Act, 1960 	8 & 9 Eliz. 2 c. 16.
Land Compensation Act, 1961 	9 & 10 Eliz. 2 c. 33.

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 6d. net

PRINTED IN ENGLAND

Port of London Act, 1961

9 & 10 ELIZ. 2 Ch. xli

ARRANGEMENT OF SECTIONS

Section

1. Short and collective titles.
2. Interpretation.
3. Incorporation of Harbours Docks and Piers Clauses Act, 1847.
4. Increase of certain rates.
5. Port rates on goods.
6. Power to stop up part of Glengall Grove.
7. Traffic offences on dock roads.
8. Payment of transfer values from Port of London Authority (Industrial Division Staff) Pension Fund.
9. Amendment of Act of 1920, Act of 1950 and Act of 1957.
10. Costs of Act.

SCHEDULES:

First Schedule.

Second Schedule—Port rates on goods.

Part I—Rates on imports.

Part II—Rates on exports.

Third Schedule—Amendment of enactments.

Part I—Amendments to take effect at the date of the passing of this Act.

Part II—Amendments to take effect on the 1st April, 1962.

